

Continuance of a summary judgment hearing is not mandatory when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under section 437c, subdivision (h). (*Park v. First American Title Co.* (2011) 201 Cal.App.4th 1418, 1428.) Plaintiff requests a continuance to permit review of Defendants' May 11, 2026 discovery responses and documents produced therewith. (Young Decl., ¶3.) Young testified that Defendants' responses confirm evidence to prepare Plaintiff's opposition to MSJ is relevant, that it exists, and is within the knowledge and possession of Movants' PMQ. (*Ibid.*) Plaintiff claims undue prejudice without such evidence. (*Ibid.*) Young asserts there was no undue delay by Plaintiff in seeking to obtain the evidence given Young only recently joined the firm and assumed responsibility for this case after prior counsel departed the firm. (*Id.* at ¶4.)

However, the Court granted a continuance based on Plaintiff's request under section 437c, subdivision (h), in June. Plaintiff failed to present evidence addressing Defendants' May 11, 2026 discovery. Plaintiff failed to present a triable issue of material fact.

**The motion for summary judgment is granted. A hearing re: proposed judgment is set for September 14, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than August 31, 2026. The proposed judgment must include dispositions as to ALL parties. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 10, 2026.**

## 2.

| CASE #      | CASE NAME                              | HEARING NAME                             |
|-------------|----------------------------------------|------------------------------------------|
| CVRI2505990 | SANCHEZ vs<br>STARBUCKS<br>CORPORATION | MOTION FOR PREFERENTIAL<br>TRIAL SETTING |

### **Tentative Ruling:**

Plaintiff brings this motion pursuant to CCP §36(a), which provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole and (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2); §36(f).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court (Metalclad Insulation, LLC)* (2018) 21 Cal.App.5th 529, 534.) The purpose of trial preference under Section 36 is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512,

515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Here, there is no dispute Plaintiff is 84 years old. The court must also find that Plaintiff has a substantial interest in the action and his health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP §36(a)(1)-(2).) There is also no dispute that Plaintiff has a substantial interest in this action. The salient question is whether Plaintiff’s health makes preference “necessary to prevent prejudicing his interest in the litigation.” (*Id.*) Pursuant to CCP § 36.5 “[a]n affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney or the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of the party.” Importantly, the *Fox* Court noted that the standard under CCP “subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor’s declaration.” (*Fox, supra.*)

Plaintiff offers the declaration of his counsel, attorney Randi L. Thompson. Attorney Thompson provides Sanchez’s medical records (Exhibits B & C) from the Emergency Department at Menifee Global Medical Center on October 26, 2023. (Thompson Decl. ¶¶ 4-5.) The medical records note Plaintiff’s medical history, which includes: “Atrial fibrillation (not on anticoagulation)” and “stroke 1.5 months ago.” (Thompson Decl. Ex C.) Attorney Thompson states Plaintiff “has several chronic and life-threatening medical conditions that, taken together with his injuries and age, are sufficiently severe that preference is necessary to prevent prejudicing his interest in the litigation.” (Thompson Decl. ¶7.)

Thompson’s declaration lacks detailed information about Plaintiff’s current physical status and, most importantly, Plaintiff’s prognosis. Thompson’s declaration does not include any information about Plaintiff’s prognosis, how Plaintiff fares in day-to-day activities, whether Plaintiff has mental capacity and acuity to understand the proceedings, Plaintiff’s mobility, conversations counsel has had with Plaintiff’s doctors or caretakers, etc. The medical records provided indicate Plaintiff has pre-existing medical conditions, including suffering a stroke 1.5 months before the incident giving rise to this litigation. However, there is no evidence that Plaintiff currently suffers from symptoms or complications relating to atrial fibrillation or stroke. Thompson’s declaration does not include any information about Plaintiff’s current medical and physical status and whether Plaintiff currently suffers from complications arising from these conditions. Without additional information about Plaintiff’s prognosis or current physical condition, the court cannot determine that Plaintiff will suffer prejudice without trial preference. **The motion is denied.**